STANDARD OPERATING PROCEDURE			G-7800
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 09/03/10	DATE REVISED **03/11/13**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE GENERAL	RESOURCES			
SUBJECT FITNESS FOR DUTY	CROSS REFERENCE G-7400 PSYCHOLOGICAL SERVICES G-7600 EMPLOYEE ASSISTANCE PROGRAM (EAP)			

I. Purpose:

The purpose of this policy is to establish the guidelines for identifying and ordering physical, emotional, and/or psychological fitness for duty evaluations for Sheriff's Office employees.

II. Policy:

This policy is intended to provide a mechanism for the assessment of an employee's emotional, mental, and physical ability to perform essential functions of their position when the employee's conduct, behavior, and/or circumstances indicate to a reasonable person that continued service by that employee may pose a threat to public safety, the safety of other employees, the safety of the particular employee, or may interfere with the Sheriff's Office ability to provide effective services.

It is not the intention of this policy to interfere with a supervisor's ability to suggest or recommend personal counseling to a subordinate or refer a subordinate to the Employee Assistance Program (EAP). Nor is this policy intended to alter or replace confidential counseling or participation in programs related to critical or deadly force incidents (see G-7400 Psychological Services).

III. Procedure:

A. Criteria: All employees should be alert to any indication that an employee may not be emotionally, mentally, or physically fit to carry out his or her official job duties. Such indications may include, but are not limited to:

1) One or more complaints, whether originated internally or externally, particularly complaints of the use of unnecessary or excessive force, inappropriate verbal conduct, or any conduct indicating an inability to exercise self-control and/or self-discipline.

2) An abrupt and/or negative change in customary behavior related to the essential functions of his or her position.

3) Irrational verbal conduct or behaviors, including delusions and hallucinations.

4) Suicidal statements or behaviors, or personal expressions of mental instability.

5) Unexplained and excessive tiredness or hyperactivity.

6) Dramatic change in eating patterns resulting in sudden weight gain or loss, or diagnosis of a life threatening eating disorder.

7) Apparent inattention or change in personal hygiene and health.

8) Inappropriate and/or excessive use of alcohol, medications, or other drugs, including symptoms of illegal drug use.

9) Memory loss.

10) Impatience or impulsiveness, specifically when related to the loss of temper.

11) A pattern of conduct indicating a possible inability or decrease in ability to defuse tense situations, a tendency to escalate such situations or create confrontations.

12) Unexplained or excessive lateness or absenteeism.

13) Difficulty, inability, or failure to complete essential physical demands of the job.

14) Observed impairment with alertness, concentration, coordination, speech, or vision.

15) Any other factor or combinations of factors that cause a supervisor to readily suspect that a fitness for duty evaluations may be necessary.

B. **Reporting:** Any employee observing circumstances indicating possible emotional, mental, or physical fitness of a fellow employee shall contact his or her immediate supervisor with the concerns. The supervisor should meet with the employee, if he or she believes that to do so will not aggravate the situation. Whether or not the meeting relieves the concerns or no meeting is conducted, the supervisor shall contact his or her Division Commander and prepare an information report of the circumstances, if so directed. This report shall not be forwarded to transcription unit but to the Professional Standards Unit for typing. The Division Commander

shall notify the Sheriff, Chief Deputy and Administrative Commander of the circumstances. An employee is not required to disclose a disability, medical condition, mental condition or impairment to a supervisor. However, a supervisor may inquire regarding the conduct or circumstances that give rise to his or her concerns.

C. **Relief from Duty:** When an employee's conduct immediately or directly threatens safety, any command officer or supervisor may immediately relieve the employee of duty, pending further evaluation/administrative investigation. The Sheriff may also reassign the employee as necessary for public safety or the efficient operation of the Sheriff's Office, pending completion of an evaluation. If ordered by the Sheriff, any readily accessible or department provided weapons or department property may be seized by the department. The employee may also be ordered to not exercise peace officer powers, perform other official duties, display a badge of office, or otherwise identify him or herself as an employee of the Sheriff's Office. (Also see G-2100 Complaint Procedures, section N: Emergency Relief from Duty).

D. **Order for the Evaluation**: The Sheriff or Chief Deputy may order an evaluation with or without additional investigation. Any evaluation ordered shall be scheduled at the earliest opportunity. The initial fitness for duty evaluation shall be at the Sheriff's Office expense.

1) Should additional investigation be necessary to determine the need for a fitness for duty evaluation, the Professional Standards Unit shall conduct the investigation unless otherwise directed by the Sheriff.

2) The Sheriff or Chief Deputy shall issue a written order for the evaluation. The order shall include:

a) A brief description of the reason(s) for the evaluation;

b) Date, time, and place of evaluation(s);

c) Name of the physician/psychologist/ or other health care professional conducting the evaluation;

d) A directive to cooperate with the physicians/psychologist or other health care professional's requests; and completely and honestly answer any questions posed;

e) Notice that the evaluation is being conducted for use by the Sheriff's Office.

E. **Requirements for the Evaluator:** Subject to applicable Federal and State law, the evaluator will be designated by the Sheriff and the evaluator shall be instructed to only release information as allowed under this policy or as otherwise required by law.

F. **Limited Scope of Report:** The Sheriff's Office has a right to information that is necessary to achieve a legitimate purpose. The evaluation is ordered by, and conducted for the Sheriff's Office. The evaluation is not for purpose of treatment but to determine an employee's fitness for duty. The limited verbal and/or written results of the evaluation will be provided to the Sheriff's Office as a confidential medical record. The report and information received by the Sheriff's Office shall be limited to:

1) A conclusion regarding the determination of fitness for duty;

2) A description of the functional limitation(s) of the employee including the duration of such limitations;

3) Whether the condition that leads to the functional limitations is work related;

4) Any other information to the extent authorized by law, necessary to achieve the legitimate purpose of the Sheriff's Office.

An employee may waive in writing any or all restrictions on the information reported to the Sheriff's Office.

G. **Disposition of Report:** The Sheriff's Office shall establish appropriate procedures to protect the information from unauthorized use or disclosure. All written reports and material related to the investigation shall be retained by the Sheriff or his or her designee until the conclusion of the investigation. The report/evaluation shall then be placed in the employee's medical file. The report may only be used or disclosed in a legitimate and appropriate proceeding to the extent authorized or compelled by law or agreement.

H. **Refusal to Cooperate:** Refusal to comply with the order or any of its parts, or with reasonable requests by the evaluator shall be deemed insubordination, and shall be grounds for disciplinary action, up to and including termination.

I. **Disposition:** Depending upon the results of the evaluation and the recommendation of the evaluator, the Sheriff may:

1) Allow the employee to return to full duty;

2) Place the employee on temporary limited or modified duty;

3) Remove the employee from all duty pending treatment and re-evaluation;

4) Institute or resume disciplinary or termination proceedings as appropriate;

J. Where possible, it is always the Sheriff's Office intent to return an employee to full duty status.